

# CAPITAL ONE N.A. v PETERSON

23CF14351

## PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

This is an action by Capital One, N.A. ("Plaintiff") against Chris Peterson ("Defendant") for the collection of a credit card debt in the sum of \$13,579.52. Defendant filed a general denial as his Answer. The Court granted Plaintiff's motion to deem requests for admissions admitted on December 20, 2024.

Now before the Court is Plaintiff's motion for judgment on the pleadings. Plaintiff's counsel made sufficient meet and confer attempts prior to filing the instant motion.

### I. Background

Defendant had a credit account issued by Plaintiff. (RFA 1.) Defendant received periodic statements regarding said credit account. (RFA 2.) As of December 8, 2023, Plaintiff owed a balance of \$13,579.52 on said credit account. (RFA 3.) Plaintiff has failed to make payments on the credit account since December 8, 2023. (RFA 4.) The last payment on the credit account was made within the three years immediately prior to December 8, 2023. (RFA 5.)

On May 15, 2025, Plaintiff filed a notice of conditional settlement. However, at the August 20, 2025, OSC hearing Plaintiff informed the Court that Defendant had not returned the signed settlement agreement. On February 25, 2026, the Court entered a minute order dismissing the matter due to Plaintiff's own failure to file a notice of dismissal.

### II. Legal Standard

A motion for judgment on the pleadings serves the same function as a demurrer but is made after the time for demurrer has expired. (Code Civ. Proc., § 438(c)(2); *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.) Except as provided by statute, the rules governing demurrers apply. (*Id.*) The court must accept as true the factual allegations of the complaint and must give them a liberal interpretation. (*Gerawan Farming, Inc., v. Lyons* (2000), 24 Cal. 4th 468, 515-516.) In addition to the pleadings, the court "may consider matters that may be judicially noticed, including a party's admissions or concessions which cannot reasonably be controverted." (*Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.)

If the motion is granted in favor of the plaintiff, "it shall be based on the grounds that the complaint states facts sufficient to constitute a cause of action against the defendant

and the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc. §438(c)(3)(a).)

## **II. Legal Analysis**

Defendant had a credit account issued by Plaintiff. (RFA 1.) Defendant received periodic statements regarding said credit account. (RFA 2.) As of December 8, 2023, Plaintiff owed a balance of \$13,579.52 on said credit account. (RFA 3.) Plaintiff has failed to make payments on the credit account since December 8, 2023. (RFA 4.) The last payment on the credit account was made within the three years immediately prior to December 8, 2023. (RFA 5.)

A common count cause of action is used to allow a plaintiff to recover money that, under the circumstances, the defendant should be required to repay to avoid inequity. (*Rubenstein v. Fakheri* (2020) 49 Cal.App.5th 797, 809.) It “broadly applies ‘whenever one person has received money which belongs to another, and which in ‘equity and good conscience,’ or in other words, in justice and right, should be returned. (*Ibid* [citations omitted].) To state a cause of action for a common count plaintiff must only allege, 1) the statement of indebtedness in a certain sum, (2) the consideration, and (3) nonpayment. (*Farmers Ins. Exchange v. Zerin* (1997) 53 Cal.App.4th 445, 460.)

Here Plaintiffs have pled and proven Plaintiff and Defendant entered into a contract for a consumer credit card (RFA No. 1) and that there is an indebtedness in the amount of \$13,579.52 (RFA 3.) Plaintiff provided credit and Defendant used that credit to make consumer purchases. (RFA No. 2.) However, Defendant stopped making payments towards the balance on the subject account and has an unpaid balance on her account. (RFA 4.)

Plaintiff has carried its burden of demonstrating evidence supporting all the elements of its common count claim and that there are no affirmative defenses available. Defendant has failed to oppose the motion and makes no argument on his own behalf. (The Court finds the CMC ruling to dismiss the matter was improper as plaintiff had informed the Court that defendant failed to complete the proposed conditional settlement.)

## **III. Conclusion**

Plaintiff’s motion for judgment on the pleadings is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted (Proposed) Order and Judgment.

**VILLAFUERTE, et al v YGRENE ENERGY FUND, INC., et al**

**24CV47273**

**DEFENDANT'S MOTION TO SET ASIDE AND VACATE  
ORDER STRIKING DEFENDANT'S ANSWER, DEFAULT, AND  
DEFAULT JUDGMENT**

This is a breach of contract action brought by Marco Villafuerte and Ximena Villafuerte ("Plaintiffs") against multiple defendants including Ygrene Energy Fund, Inc. ("Ygrene.")

Now before the Court is Ygrene's Motion for Relief from Default Judgment and Motion to Set Aside the order striking Ygrene's Answer.

A Court has discretion to set aside a default and grant leave to defend the action on grounds of "mistake, inadvertence, surprise or excusable neglect." (Code Civ. Proc., § 473(b).) The motion for discretionary relief must be filed within six months after the clerk's entry of default, which occurred here on October 7, 2025. Ygrene's initial ex parte application was filed on March 30, 2026, within six months of the October 7, 2025, default judgment. (Declaration of Noel J. Meza ("Meza Decl.") ¶ 11.) However, a proper motion was not filed until July 27, 2026, giving the Court the potential to find it was untimely. However, in keeping with the law's strong preference to resolve matters on their merits, the fact the ex parte extended time for a motion, and the failure to thereafter meet the six month timeline was the failure to follow the local rule procedures, a finding of untimeliness would lead to a new 473 motion for relief on attorney mistake for the failure to follow the rules. Therefore, the Court finds the motion is timely and will rule based on its substantive merits.

Plaintiffs filed this action on or about March 8, 2024. On May 6, 2024, while represented by attorney Daniel R. Paluch and his firm ("Prior Firm"), Ygrene filed its Answer. (Meza Decl. ¶ 4.) Mr. Paluch passed away unexpectedly on July 8, 2025. (*Id.* ¶ 5.) Prior Firm remained counsel of record, and Ygrene believed that it would continue to be represented appropriately by Prior Firm. (Declaration of Supriya Sachar ("Sachar Decl.") ¶ 3.) Ygrene instructed Prior Firm to contact Plaintiffs and seek a continuance of the Mandatory Settlement Conference that had been scheduled for September 8, 2025 but Prior Firm did not appear to do so and no one appeared at the conference on Ygrene's behalf. (*Id.* ¶ 4; Meza Decl. ¶¶ 6, 7.) Ygrene was not informed of these failures. (Sachar Decl. ¶ 5.) The Court then set an Order to Show Cause hearing for October 3, 2025, regarding whether Ygrene's Answer should be stricken. No one appeared for Ygrene at that hearing either and the Court struck Ygrene's Answer. Default judgment was thereafter entered against Ygrene on October 7, 2025. (*Id.* ¶ 8.) Current counsel has